



Engineering
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MEMORANDUM

TO: Mayor Kaysen
City Council

FROM: Nathan Beauheim, P.E., Asst. City Engineer

RE: Contract Modification #3 to Contract #5496 with Ayres Associates for the E. Pershing Blvd. Reconstruction Project

DATE: January 4, 2013

Ayres Associates was originally retained in late 2009 to design and provide construction engineering services for the E. Pershing Blvd. Reconstruction Project. The original project scope was to rehabilitate E. Pershing Blvd. between Dunn Ave. and Rayor Ave. and reconstruct Pershing between Rayor Ave. and Converse Ave., including the construction of the roundabout at the Pershing Blvd. / Converse Ave. / 19th St. intersection. The scope was subsequently expanded to include rehabilitating Pershing between Seymour Ave. and Dunn Ave. due to bids on another project coming in better than expected and freeing up additional funding.

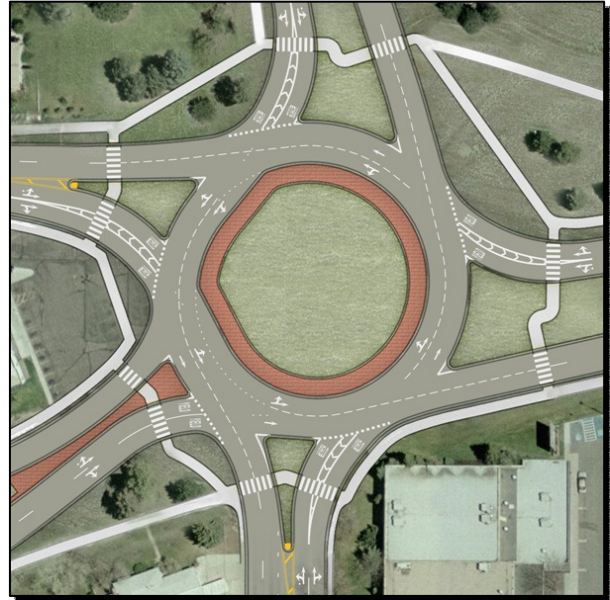
The reconstruction of Pershing Blvd. between I-25 and Converse Ave. was originally master planned by AVI in 1987. They recommended splitting the reconstruction into five phases. The segment between Dunn Ave. and Converse Ave. was identified as Phase IV of the larger project. At the time, broken sidewalks/curb & gutter, drainage problems, excessive crowns, steep grades, and very high on-going maintenance requirements were identified. These problems have not been fixed on this segment and have become increasingly worse. Meanwhile traffic volumes have continued to increase of this segment, growing from 12,700 vehicles per day when the study was done to 15,000 vehicles per day in 2010.

At the time the master plan was done, Phase IV was planned for construction in 1995-96. In fact, Phase IV was not actually funded until the 2007-2010 1% Sales Tax with a budget of \$2,117,000.00. Rather than base a major reconstruction project on a plan that was nearly twenty years old, the Cheyenne Metropolitan Planning Organization hired Ayres Associates in 2008 to update the corridor plan, as well as to develop a final recommendation for the reconfiguration of the Pershing/Converse/19th intersections.

The Pershing/Converse/19th intersections have themselves been the subject of at least three major

studies, done by Benchmark (2000), LSA (2005), and Ayres (2009). Constructing a multi-lane roundabout was the preferred alternative from both the LSA and the Ayres studies. In both studies, it was the alternative that was best able to safely accommodate the future traffic requirements while minimizing right-of-way impacts and construction costs.

Early in 2012, the City Engineer's Office elected to split the E. Pershing Blvd. Reconstruction Project into two separate projects. Each of the two projects will be bid and awarded separately. I have attached a map showing the limits of the various types of work and projects.



The first project is to rehabilitate Pershing between Seymour Ave. and Rayor Ave. and to reconstruct the corridor between Rayor Ave. and Carbon Ave. This includes replacing more than 3100 feet of water main as well as sanitary and storm sewer improvements. This first project was recently awarded to Reiman Corp. for construction in the summer of 2013 using 5th Penny, Board of Public Utilities (BOPU) and Federal Highway Administration funding. This project is commonly being called the corridor project.

The second project will be to construct the multi-lane roundabout at the intersection of Pershing / Converse / 19th. The second project also includes reconstructing the block of Pershing between Converse and Carbon; as well as water main and storm sewer upgrades. This second project is scheduled to be out to bid in the first quarter of 2013 for construction in the summer of 2013. The second project will be financed with 5th Penny and BOPU funding. This project is commonly being called the intersection project or just the roundabout.

One advantage of splitting the project into two was that it allows the corridor project to proceed independently of the right-of-way acquisition for a portion of the property at 1900 Converse, which turned out to be far more difficult than ever envisioned. This in turn is important in that there are significant maintenance issues for both the City and BOPU that need to be addressed in the reconstruction portion of the corridor project.

The additional design costs of expanding the project and splitting it into two separate contracts was covered in Contract Modification #2 to Ayres' contract, however the additional construction administration time was not. (Contract Modification #1 dealt with some design elements that were not anticipated in the original scope of work.)

This contract modification specifically includes the following additional tasks:

Task 1 – Prepare Documents for Condemnation.

This task includes money for time that was spent by Ayres and their subconsultants preparing expert witness statements and collecting documents for routine discovery in the condemnation case against 1900 Converse Ave. Condemnation was never anticipated in the original scope of work and no provisions were originally made for this type of work.

Task 2 – Hollywood Video Revisions

This task consists of designing a parking lot, including all necessary construction drawings, for the construction of a parking lot on the City-owned land on the northwest corner of the intersection of Pershing & Converse. Under the proposed settlement with the owners of 1900 Converse, this parking lot will be conveyed to the 1900 Converse owners in partial exchange for the property the City wishes to acquire.

Task 3 – Misc. Roundabout Design

This task adds additional design to add rectangular rapid flash beacons to the crosswalks at the roundabout and to change some details on the water mains to reflect updated standards. The portion dealing with the water main changes is being paid by BOPU.

Task 4 – Safeway Revisions

Throughout this project, the City has endeavored to work closely with the surrounding property owners to coordinate the City's work with other things going on in the neighborhood. Nowhere has this been more important, and more time consuming, than with Safeway's redevelopment of the Cole Shopping Center. One key item of coordination of plans is the location of access points along E. Pershing.

Unfortunately, this changed after this portion of the plans was substantially complete. This change affected not only the main driveway into the Safeway property, but also the medians (and their landscaping), water connections, striping, concrete pavement joint layout, cross sections, and storm sewers.



Task 5 – Additional Construction Services

When the project was split in early 2012, it was anticipated that additional construction administration was going to be required due to having two separate contracts, potentially with two separate contractors, however; no money was included to cover the cost because of

uncertainties about timing. Now that the timing of both projects is known, funds are being allocated to cover the additional construction administration. This task also includes money for Quality Acceptance testing, which is required on the corridor portion of the project as a condition of the Federal Highway Administration funds.

Hopefully this explains the proposed contract modification. If you have any questions or concerns, please do not hesitate to contact me.